

FA8626.52.219-9ZH1 ON-RAMPING (JULY 2025)

(a) The Government reserves the unilateral right to reopen competition or “on-ramp” additional contractors during years two, five, seven and as needed any time during the term of the contract. The Government may choose to on-ramp any number of new awardees when the Procurement Contracting Officer (PCO) determines it is in the Government’s best interest to do so in order to enhance the competitive environment of Fair Opportunity Proposal Requests (FOPRs) under the originally awarded Indefinite Delivery Indefinite Quantity (IDIQ) contracts. This may be due to any reason, including the lack of robust competition for FOPRs, or a shrinking of original effective IDIQ awardees under this solicitation.

(b) When an on-ramp is used, the Government will advertise the reopening of the competition on SAM.gov, and awardees shall meet the criteria established in the initial Advanced Propulsion Acquisition Contract (APAC) solicitation; this includes all evaluation criteria. The evaluation and selection of awardees for any on-ramp will be exactly the same as the evaluation and award criteria used for the APAC initial basic contract awards. The anticipated number of awards for F&O competition will be announced in the reopening announcement posted to SAM.gov. Any new awardees will compete with any existing or remaining Contractors for all task orders.

(c) The reopened solicitation may contain additional or updated clauses that were revised since the initial solicitation. In the event an “on ramp” is used, Contractors with existing basic contracts will be notified of any clause additions or updates which will be incorporated via a bilateral modification.

(d) Any additions due to on-ramps will not impact the APAC contract ceiling and the ordering period for new awardees will not exceed the overall maximum term of the original IDIQ contract, including options (i.e., will not extend past the dates established at initial award).

(e) The Government will not consider unsolicited requests for addition to the APAC contract.

FA8626.52.219-9ZH2 OFF-RAMPING (JULY 2025)

(a) APAC reserves the unilateral right to off-ramp non-performing Contractors. Contractors that are off-ramped will have no active task orders at the time of the off-ramping. The off-ramp process under an IDIQ contract encompasses several methods by which the Government may exercise its right to remove a contractor from the IDIQ contract awardees. The off-ramp methods include, but are not limited to:

- (1) PCO determines that exercising of Option I is not in the Government’s best interest, therefore, allowing the Contractor’s contract term to expire.
- (2) Debarment, suspension, or ineligibility as defined in FAR Subpart 9.4501-1, 9.405-2.
- (3) Termination as defined in FAR Part 49.402, 49.403.

(b) Remedies for Breach by the Government: Contractor's sole and exclusive remedy for breach by the Government shall be termination for convenience damages, task order proposal preparation costs, task order award, and/or reinstatement if deemed feasible by the Government in its sole discretion. In no event shall the Government be liable to the Contractor for expectancy damages, including but not limited to lost profits, or consequential damages resulting from breach of this contract.

DRAFT